

respect to it in favour of another, the Court, *where there is sufficient consideration, or in a will where consideration is implied*, will execute that intention, through the medium of a trust, however informal the language in which it happens to be expressed.¹

¹ IMPLIED TRUSTS. — *Precatory Words*. — If the object and the subject-matter are sufficiently certain, a trust will arise from precatory words; *Hardley v. Wrightson*, 60 Md. 198; from such words as "desire"; *Coburn v. Anderson*, 131 Mass. 513; "request," *Eddy v. Hartshorne*, 34 N. J. Eq. 419; "wish and desire," *Cockrill v. Armstrong*, 31 Ark. 680; "wish and request," *Cook v. Ellington*, 6 Jones Eq. 371; "it is my wish"; *Brunson v. Hunter*, 2 Hill's Ch. 490; *McRae v. Means*, 34 Ala. 349; "having confidence"; *Dresser v. Dresser*, 46 Me. 48; *Reid v. Blackstone*, 14 Gratt. 363; "with full confidence that they will"; *Bull v. Bull*, 8 Conn. 47; "have the fullest confidence"; *Warner v. Bates*, 98 Mass. 274; *Knox v. Knox*, 59 Wis. 172; 48 Am. Rep. 487; "to dispose of and divide among my children"; *Collins v. Carlisle*, 7 B. Mon. 14; "I allow my son to support her"; *Hunter v. Stembridge*, 12 Ga. 243; "I desire that he should appropriate not exceeding \$50 per year"; *Erickson v. Willard*, 1 N. H. 217. Such words insufficient; "a wish and desire" that wife will leave "any part remaining" in certain way; *Church v. Disbrow*, 52 Pa. St. 219; if there is an absolute gift, precatory words will not annex a trust to it; *Barrett v. Marsh*, 126 Mass. 213; recommending a person to one's care and requesting such provision as his judgment may dictate; *Colton v. Colton*, 21 Fed. Rep. 594; *Kirkland v. Narramore*, 105 Mass. 31; 7 Am. Rep. 497; to widow "during her lifetime for the support of herself and my children"; *Billar v. Loundes*, 2 Dema. (N. Y.) 590; to wife "recommending her to make some small allowance"; *Ellis v. Ellis*, 15 Ala. 296; 50 Am. Dec. 132; "and it is my request and desire that my wife E. should," &c.; *Williams v. Worthington*, 49 Md. 572; 33 Am. Rep. 286; words indicating merely a wish and appealing to one's discretion; *Wilde v. Smith*, 2 Dema. (N. Y.) 93; executor to "control and direct" son; *Paper Mill Co. v. Fisk*, 47 Mich. 212; for "E. or M. or the survivor of them"; *Idé v. Pierce*, 134 Mass. 260; if full discretion is given in will, precatory words will not create; *Corby v. Corby*, 85 Mo. 371; "assumed" would do right thing, no trust; *Rose v. Porter*, 141 Mass. 309; to give to children as she should think best; *Gilbert v. Chapin*, 19 Conn. 351; to such other persons as she might wish and request to be members of her family; *Harper v. Phelps*, 21 Conn. 257; *Loring v. Loring*, 100 Mass. 340; "family," as to after born children; *Weems v. Harrold*, 75 Ga. 866; to dispose of as she may think proper; *Thompson v. McKisick*, 3 Humph. 631; "having full confidence"; *Pennock's Est.* 20 Pa. St. 268; see also *Spooner v. Lovejoy*, 108 Mass. 534; *Hess v. Singler*, 114 Mass. 59; *Whiting v. Whiting*, 4 Gray, 240; *Andrews v. Bank*, 3 Allen, 313; *Smith v. Wildman*, 37 Conn. 387; *Cole v. Littlefield*, 35 Me. 439; *Wright v. Miller*, 8 N. Y. 9. It is not easy to lay down any arbitrary rule, as the words, circumstances, and evident intention of the parties must control; 1. Jar. Wills, 385 and note; 3 Redf. Wills, 416; *Hill on Trustees*, 73; *Negroes v. Plummer*, 17 Md. 165; *Warner v. Bates*, 98 Mass. 276. No trust will arise where the words simply state the motive leading to a gift, as "to enable him to maintain children," *Bryan v. Howland*, 98 Ill. 625; no matter how strong the language, a trust will not be implied, if the testator declare he does not intend one; *Whipple v. Adams*, 1 Met. 444; *Barrett v.*